

SENATE BILL 1945

By Haile

AN ACT to amend Tennessee Code Annotated, Title 40,
Chapter 11, relative to release on bail.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 40-11-141, is amended by deleting subsection (b) and substituting the following:

(b) If after the defendant is released upon personal recognizance, an unsecured personal appearance bond, or any other bond approved by the court, the defendant violates a condition of release, is charged with an offense committed during the defendant's release, or engages in conduct which results in the obstruction of the orderly and expeditious progress of the trial or other proceedings, then the court may, upon the filing of a written order and notice of hearing, temporarily revoke the defendant's bond and order the defendant held without bail for no more than ten (10) days pending a bail revocation hearing. Following a bail revocation hearing, if the court finds that the defendant has violated a condition of bond, then the court may permanently revoke the defendant's bond and order the defendant held without bail pending trial or without release during trial.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.